

2021 P L C (C.S.) 639

[Lahore High Court]

Before Jawad Hassan, J

SAIQA ANWAR

Versus

SECRETARY SCHOOL EDUCATION and others

Writ Petition No.46164 of 2017, decided on 20th October, 2020.

Civil service---

---Contract of employment, cancellation of---Scope---Petitioner challenged the cancellation of her contract of employment---Contention of petitioner was that the department was informed about her absence due to murder threats by her husband; that her contract was cancelled without issuing any notice and that an opportunity of personal hearing was not provided---Validity---Application under Ss.22-A & 22-B, Cr.P.C., produced by petitioner before the department showed that it was filed against certain persons who were causing illegal harassment to her and her husband which apparently contradicted her stance that she had a threat of murder or dire consequences by her husband---Impugned order reflected that the petitioner was afforded an opportunity of hearing which she had duly availed---Charges levelled against the petitioner had been proved through concurrent findings of two authorities, credibility of which could not be shaken by the petitioner---Constitutional petition was dismissed.

Muhammad Kafeel Salik Niaz for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General for Respondent.

ORDER

JAWAD HASSAN, J.----Through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner seeks setting-aside of impugned orders dated 31.01.2014, 13.10.2014 and 29.05.2017 passed by the Respondents.

2. Facts of the case, as per petition, are that the Petitioner was appointed as ESE (Science-Math) by the Respondents vide letter of agreement dated 13.02.2012 on contract basis for a period of five years. The said contract was cancelled by the Respondent No.4/District Education Officer (W-EE), Faisalabad vide order dated 30.01.2014 on the basis of committing violation of terms and conditions of the letter of agreement. She filed appeal against aforesaid order before the Respondent No.2/District Coordination Officer, Faisalabad

which was allowed vide order dated 18.07.2014 with direction to the Respondent No.4 to restore her service contract. The Respondent No.4 in spite of restoring the contract held in abeyance the order of the Respondent No.3 vide order dated 19.09.2014 and sought guidance from the Respondent No.1/Secretary School Education for implementation of order of the Respondent No.2. The Respondent No.1 vide order dated 22.09.2014 directed the Respondent No.4 to implement the order dated 31.01.2014 in letter and spirit. The Respondent No.4 vide order dated 13.10.2014 withdrew the order of the Respondent No.2 and directed the concerned DDO/DDEO (W) to proceed with cancellation of order dated 31.01.2014. The Petitioner assailed order dated 31.01.2014 and 13.10.2014 by filing Writ Petition No.35460 of 2015 which was disposed of vide order dated 05.05.2017 with direction to hear the Petitioner and pass a speaking order; pursuant to which the order dated 29.05.2017 was passed. Hence this petition.

3. Learned counsel for the Petitioner inter alia submitted that the impugned orders are against the law and facts; that the Petitioner informed the Respondents about her absence due to murder threats by her husband but the impugned orders were passed without issuing any notice; that neither any regular inquiry was carried out nor opportunity of personal hearing was provided to her which is against Article 10-A of the Constitution; that the Petitioner has been penalized without availability of actual record, as such the impugned orders are based on mala fide.

4. Learned Law Officer vehemently contested the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the ground that the impugned orders have rightly been passed and the allegations levelled against the Petitioner were duly proved therefore her contract was rightly cancelled after adopting proper procedure as such there is no illegality or perversity in the impugned orders.

5. Heard. Record perused.

6. The fact of appointment of the Petitioner as ESE (Science-Math) on contract basis for a period of five years is not disputed. The Petitioner has challenged the impugned orders of the Respondents rendering concurrent findings. The first impugned order dated 31.01.2014 was passed by the Respondent No.4 due to violation of Clause 8(3) of the letter of agreement. An appeal was preferred against abovesaid order before the Respondent No.2 wherein she alleged that she got married and her husband namely Aamir Ali physically abused her and threatened to murder her due to which she hid herself and could not join the duties or appear before the Respondent No.4. She further alleged that she telephonically informed the incharge Headmistress of the School and also requested for grant of leave. The Respondent No.2 while taking lenient view, accepted the appeal on production of order dated 24.12.2013 of Additional Sessions Judge, Sahiwal passed on her application under Sections 22-A and 22-B. It is very interesting to note that aforesaid application was filed by the Petitioner against certain persons who were causing illegal harassment to her and her husband. There are apparent contradictions in her stance before the Respondent No.2 and before the Additional Sessions Judge as she stated before the Respondent No.2 that she had threat of murder or dire consequences by her husband whereas before Additional Sessions Judge, she is seeking protection for herself as well as for her husband.

7. Similarly, the impugned order dated 29.05.2017 reflects that the Petitioner was afforded opportunity of hearing which she availed on 27.05.2017. Relevant portion of the same is reproduced hereunder:-

"The Deputy District Education Officer (W-EE), Tehsil Samundri (drawing and disbursing officer) submitted absent report of the petitioner vide letter No.33 dated 06.01.2014 to the District Education Officer (W-EE), Faisalabad (Respondent No.4) whereby it was intimated that the petitioner was absent from duty for the period from 01.01.2014 onward. On receipt of said absence report, respondent No.4 being appointing authority issued show-cause notice to the petitioner vide Memo. No.178/EC.I, dated 10.01.2014 whereby she was directed to explain the reasons of her absence from duty within three days. She was further directed to appear before Respondent No.4 for persona hearing on 20.01.2014. But neither she submitted reply to show-cause notice nor appeared before the Respondent No.4. Subsequently, another notice was served upon the petitioner and she was directed to appear before Respondent No.4 on 27.01.2014 for personal hearing but she again did not turn up. Hence, respondent No.4 cancelled the contract agreement offer letter vide Order No.528/EC.I dated 30.01.2014 due to violation of terms and conditions of the said agreement by the Petitioner".

8. From the above, it is very much clear that the Petitioner was afforded full opportunity of personal hearing as well as right of defence but she could not counter the charges/allegations through cogent, convincing and confidence inspiring evidence which otherwise had been proved. Furthermore, the Petitioner has neither stated in this petition nor before the Respondent No.3 the grounds of her absent from duty which she took before the Respondent No.2. Learned counsel for the Petitioner remained unable to point out any illegality or legal perversity in the impugned orders. The Petitioner has also not been able to prove her allegation regarding mala fide or biasness of the Respondents through any tangible material. Mere verbal allegation in this regard cannot be relied upon. The case law relied upon by the learned counsel for the Petitioner do not support her as each and every case has its own facts and circumstances, therefore, distinguishable from the case in hand. Moreover, the Petitioner herself admitted before the Respondent No.2 that she informed the authority telephonically about her absence from duty however, she has neither placed on record any document nor produced her defense before the Respondents in this regard.

9. In this view of the situation, the charges/allegations levelled against the Petitioner have been proved through concurrent findings of two authorities, credibility of which could not be shaken by the Petitioner, I am not inclined to interfere with the impugned orders which otherwise have been passed aptly. Resultantly, the instant petition stands dismissed.

SA/S-63/L

Petition dismissed.